

Devender v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 27 May 2022 · WRIT - C No. 10930 of 2022 · **Writ disposed of without merits; liberty to object under clause 6.8; coercive action stayed eight weeks.**

HEADNOTE

Without examining the merits of a challenge to section 126 assessment and demand notices, the Division Bench disposed of the writ by granting liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive action for eight weeks or until disposal, whichever is earlier.

FACTUAL SUMMARY

The petitioner approached the Allahabad High Court to quash provisional and final assessment notices issued under section 126 of the Electricity Act, 2003, a demand notice dated 1 October 2019, and a notice dated 28 January 2022, and sought mandamus to decide his representation dated 18 November 2019 and to restrain coercive recovery. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause 6.8 objection as alternative to writ against s.126 demand

HOLDING

Without expressing any opinion on merits, a writ challenging section 126 assessment and demand notices is disposed of by granting liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, which, if filed within four weeks, shall be decided in accordance with law within the next four weeks after hearing, with coercive action stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

PRINCIPLE TAGS

assessment-6.8-alternate-remedy

The Court treated a clause 6.8 objection as the proper forum for the challenge to the section 126 demand, disposing of the writ without a merits grant or refusal and staying coercive recovery pending that statutory process. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE SECTION 126 ASSESSMENT AND DEMAND NOTICES

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1